

TENTATIVE RULINGS for LAW and MOTION

January 20, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Bolton v. Ahmed et al.**
Case No. CV-2024-2310

Hearing Date: **January 20, 2026** **Department Fourteen** **9:00 a.m.**

The Court, in its discretion, considers defendant Aala Ahmed's untimely opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

Defendants/cross-complainants Jagdish Thind and Sierra Gold Nurseries, Inc.'s motion to contest defendant Aala Ahmed's application for determination of good faith settlement is **GRANTED**. (Code Civ. Proc., § 877.6, subd. (a)(2).) The Court finds that defendant's application is insufficient; thus, the Court cannot determine if the settlement was made in good faith. (Code Civ. Proc., § 877.6, subd. (b); *Tech Bilt, Inc. v. Woodward-Clyde & Assocs.* (1985) 38 Cal.3d 488, 499 [*Tech-Bilt*].) Specifically, defendant fails to state: (1) the reasoning for the range provided regarding plaintiff's anticipated total recovery; (2) the reasoning why the settlement amount is reasonable based on the rough approximation of defendant's proportionate liability; (3) how this settlement impacts any potential settlement/payment of a verdict in the consolidated case of *Boston v. Ahmed et al.*, Yolo County Superior Court case number CV-2025-2103; and (4) defendant's financial condition. (See *Tech Bilt, supra*, at p. 499.) Additionally, the Court could not determine whether the settlement is confidential, in which case Code of Civil Procedure section 877.6(a)(2) may not be utilized.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Capital One, N.A. v. Cesaire**
 Case No. CV-2025-3423

Hearing Date: **January 20, 2026** **Department Eleven** **9:00 a.m.**

Defendant Jerry Cesaire's unopposed motion to compel arbitration and to stay proceedings is **GRANTED**. (Code Civ. Proc., §§ 1281.2, 1281.4; Cesaire decl., ¶¶ 1-6, Exhibit A.)

This case is **STAYED** pending the completion of arbitration. (Code Civ. Proc., § 1281.4.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Flores-Campbell et al. v. County of Yolo
Case No. CV-2023-2399

Hearing Date: January 20, 2026 **Department Eleven** **9:00 a.m.**

The Court declines to consider plaintiffs Michele Flores-Campbell and Ryan Campbell's sur-reply and supplemental opposition to motion for issuance of order to show cause. (See Code Civ. Proc., § 1005, subd. (b).)

Defendant/cross-complainant County of Yolo's motion for issuance of order to show cause re: sanctions and contempt, and for attorneys' fees and costs is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 1209, subd. (a)(5), 1211, subd. (a).) In an indirect contempt matter, "an affidavit must be presented to the court stating the facts constituting the contempt, an order to show cause must be issued, and a hearing on the facts must be held by the judge." (Code Civ. Proc., § 1211, subd. (a); *Arthur v. Superior Court of Los Angeles County* (1965) 62 Cal.2d 404, 408; see *In re Marcus* (2006) 138 Cal.App.4th 1009, 1014.) The Court finds that the affidavit submitted by attorney Eric May on behalf of County of Yolo fails to state all the requisite facts constituting the claimed contempt. (*In re Ivey* (2000) 85 Cal.App.4th 793, 798; May Decl., ¶¶ 2, 3, Exhibit A; see May Sup. Decl., ¶¶ 2, 3; Opposition, §§ II, III.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Guzman v. Aono**
Case No. CV-2025-3687

Hearing Date: **January 20, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Christina Guzman’s (known as Jessie Guzman) motion to redact personal information for privacy and safety is **DENIED WITHOUT PREJUDICE**. (Cal. Rules of Court, rules 2.550-2.551.) A party requesting that a record be filed under seal must file a motion that is “accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (Cal. Rules of Court, rule 2.551(b)(1).) Plaintiff failed to file an accompanying memorandum and declaration, as required.

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Polk v. Garcia**
 Case No. CV-2022-1947

Hearing Date: **January 20, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Jessica Polk’s petition to correct the Court’s January 6, 2025, order *nunc pro tunc* to correct clerical errors is **GRANTED**. (Code Civ. Proc., § 473, subd. (d); *People v Humphrey* (2020) 44 Cal.App.5th 371, 379; *Ames v. Paley* (2001) 89 Cal.App.4th 668, 672; Lozada Decl., ¶¶ 1-5.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312, or further notice is required.